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Counterfactual Mandate-Stay Motion: Grant Path

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed July 27, 2026

Granite Heron moves under Federal Rule of Appellate Procedure 41(d)(2) to stay issuance of the mandate while Blue Ember prepares a petition for a writ of certiorari. The counterfactual opinion and judgment entered July 9, 2026, affirmed mitigation JMOL and affirmed the December 15, 2025 amended judgment for $2,700,000. The conditional Rule 59 ruling remained dormant, and the panel ordered no remand.

Blue Ember has authorized counsel to confirm that it presently intends to seek Supreme Court review of the mitigation-sufficiency holding. The parties agree that a short, secured stay will preserve the posture needed for orderly review without revising any merits ruling. Granite Heron will post security in an amount and form approved by the district court before relying on the stay to resist enforcement.

No party petitioned for rehearing by July 23. Absent relief, Rule 41 places ordinary mandate on July 30. This motion is filed three days beforehand and asks for a stay no longer than ninety days, subject to earlier termination if Blue Ember abandons its petition or further order follows.

The requested relief concerns only the timing of mandate. It neither recalls an issued mandate nor changes the two-component counterfactual affirmance.

Substantial certiorari question

The contemplated petition would ask whether Rule 50 permits a court to direct the entire dollar amount of an affirmative-defense deduction when the defense was expressly preserved but material evidence left technical qualification, commercial availability, timing, and successful performance open to rational disagreement. That issue controlled the branch disposition: the panel treated the Cobalt Finch opportunity and the economic evidence as compelling the full $1,500,000 deduction.

Blue Ember would maintain that preservation answers only whether the court may reach the defense. It does not eliminate the Seventh Amendment and Rule 50 requirement that disputed inferences be viewed for the verdict winner. The record described a held production suite and relevant capabilities, but also qualification work, execution risk, timing dependencies, and uncertainty over whether the substitute program would have succeeded on the assumed schedule.

Granite Heron would oppose that petition on the merits. It would emphasize the identified opportunity, Blue Ember's capacity, the staged plan, the absence of a known disqualifying conflict, and the bounded arithmetic. Its opposition to certiorari does not make the question insubstantial for Rule 41 purposes. The question is outcome-determinative and framed by a final appellate judgment rather than an interlocutory dispute.

The intended petition does not challenge the express-preservation premise itself, liability, causation, or any issue from the actual appeal. Its narrow focus supplies a concrete controversy suitable for the stay inquiry.

Genuine petition and positions of the parties

Maya Holt, authorized counsel for Blue Ember, informed Granite Heron on July 24 that Blue Ember's litigation committee approved preparation of a certiorari petition directed to the preserved-mitigation sufficiency question. Counsel expects to complete the petition within the governing Supreme Court period. Blue Ember will file a response confirming that intention and explaining its requested conditions.

That commitment distinguishes this request from speculation about whether another party might seek review. The party adversely affected by the counterfactual judgment owns the proposed petition, has identified the precise holding it would challenge, and has authorized its lawyers to proceed. Granite Heron does not purport to speak for Blue Ember or manufacture standing for a petition of its own.

The parties disagree about the likelihood that certiorari will be granted and about the correctness of the July 9 holding. They nevertheless agree that issuing mandate during the short preparation interval could generate district enforcement activity, a security contest, and potential restitution administration before the Supreme Court has an opportunity to act.

Granite Heron therefore asks for a stay based on the represented petition, not on a generalized desire for delay. If Blue Ember changes course, both parties will notify this Court promptly so that the stay may be dissolved. Nothing in this motion commits the panel to any assessment beyond the limited Rule 41 standard.

Good cause and adequate security

Good cause exists because mandate would return an affirmed money judgment for immediate district administration while a concrete, potentially dispositive petition is being prepared. Enforcement could require collection measures, asset restraints, interest calculations, and later unwinding if Supreme Court review changes the mitigation ruling. A short stay coordinates those proceedings without depriving Blue Ember of meaningful protection.

Granite Heron offers security for the full $2,700,000 judgment plus projected postjudgment interest during the initial ninety-day period. Within two business days after an order granting relief, it will submit a bond or equivalent undertaking to the district court for approval. The stay may be conditioned on approval and continued effectiveness of that security. Failure to obtain or maintain it would permit Blue Ember to request immediate dissolution.

This proposal does not suggest that ordinary monetary enforcement alone is irreparable. The relevant good cause is the combination of a genuinely authorized petition, an outcome-determinative federal question, a brief and defined interval, and protection equal to the affirmed amount. Blue Ember's expected response eliminates concern that delay is being imposed against the judgment holder's wishes.

The arrangement also protects public administration. It avoids parallel proceedings while preserving the district court's authority over the form of the undertaking and the calculation of interest. No merits issue would return to the district court during the stay.

Rule 40 and Rule 41 chronology

The counterfactual panel entered its opinion and judgment on July 9. The fourteen-day period for a Rule 40 petition ended July 23, and no petition was filed. Rule 41(b) therefore establishes July 30 as the ordinary mandate date, seven days after expiration of the rehearing period. This July 27 motion does not extend, restart, or alter either completed calculation.

Rule 41(d)(2)(B) limits a certiorari stay to ninety days unless the period is extended for good cause or the petition is filed. If Blue Ember files within the permitted interval, the stay may continue until the Supreme Court’s final disposition. The parties will provide the clerk a copy of the petition and later disposition, and they accept any status-report requirement the panel imposes.

Granite Heron proposes that relief terminate on the earliest of ninety days after entry, Blue Ember’s written abandonment of the contemplated petition, failure of required security, denial or final disposition by the Supreme Court, or further order of this Court. Counsel will report an abandonment immediately rather than waiting for the initial period to expire.

The mandate has not issued, so recall is neither requested nor necessary. An order entered before July 30 can preserve the existing appellate custody of the judgment without disturbing the branch’s settled merits.

Requested order, service, and branch isolation

Granite Heron requests an order staying mandate under Rule 41(d)(2), conditioned on security for $2,700,000 plus projected interest and on prompt notice of any change in Blue Ember's petition plan. The stay should last at most ninety days unless a qualifying petition is filed, and it should dissolve earlier upon abandonment, security failure, Supreme Court disposition, or further panel order.

The order should leave untouched the July 9 judgment affirming mitigation JMOL and the December 15 amended judgment. It should state that the conditional damages new-trial ruling remains dormant, that liability and causation are unchanged, and that no remand occurs. The only requested procedural consequence is temporary withholding of mandate.

Eli Mercer signs for Granite Heron Logistics, Inc., with Tara Webb's authorization. Counsel certifies electronic service on Maya Holt and Jonas Bell on July 27, 2026. Counsel also certifies that Blue Ember authorized the representation that it intends to petition, while reserving its own explanation of the question and requested safeguards.

This grant-path motion exists solely on the marked counterfactual docket. It does not incorporate the separate denial-path motion, which rests on a different petition premise, and it cannot be combined with that source. It neither describes an actual Supreme Court plan nor alters the actual causation-only Rule 50(a) record, actual appellate disposition, or actual remand.